

HOUSE No. 1696

The Commonwealth of Massachusetts

PRESENTED BY:

Brandy Fluker-Reid

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to cure us of the liabilities that ultimately restricted equity.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Brandy Fluker-Reid</i>	<i>12th Suffolk</i>	<i>1/17/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/6/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>3/18/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>10/15/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>10/15/2025</i>

HOUSE No. 1696

By Representative Fluker-Reid of Boston, a petition (accompanied by bill, House, No. 1696) of Brandy Fluker-Reid and Samantha Montañó relative to establishing a commission to study and develop proposals for lineage-based reparations programs in the Commonwealth. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3921 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to cure us of the liabilities that ultimately restricted equity.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. There shall be a commission to study and develop proposals for reparative
2 justice in the commonwealth through a truth and reconciliation process, to redress harms
3 resulting from the institution of slavery and its legacy endured by formerly enslaved citizens of
4 Massachusetts and their descendants. For the purposes of this act, descendants of formerly
5 enslaved people in the United States shall be understood to be members of the Freedmen class,
6 hereinafter referred to as American Freedmen. American Freedmen are that class of persons
7 emancipated in the United States via the 13th Amendment in 1865 or earlier, and their
8 descendants. Members of the commission shall be considered special state employees for
9 purposes of chapter 268A of the General Laws.

The commission shall develop reports documenting the effects of slavery and its legacy on the American Freedmen class in the commonwealth. These reports shall include, but not be limited to, the effects of slavery, domestic terrorism, political disenfranchisement, housing segregation, separate and unequal education, pathologizing of the Freedmen families, environmental and infrastructure partiality that disproportionately affects the Freedmen class, control over creative cultural and intellectual life, stolen labor and hindered opportunity, an unjust legal system, neglect, mental and physical harm, as well as the persistent and growing wealth gap of American Freedmen.

SECTION 2. The commission shall consist of 15 members, the majority of whom shall be members of the American Freedmen class: 11 members appointed by the governor, 1 of whom shall have expertise in remedial justice, 1 of whom shall have expertise in genealogy, 2 of whom shall have expertise in the history of American slavery and institutional discrimination and systemic racism, 2 of whom shall be members of organizations concerned with remedial justice, 1 of whom shall have expertise in forensic accounting, 1 of whom shall have expertise in public policy, 2 of whom shall be Massachusetts residents of the American Freedmen class who have demonstrated a commitment to advocating for remedial justice, and 1 of whom shall have expertise in constitutional law; 2 members appointed by the president of the senate; and 2 members appointed by the speaker of the house of representatives.

The appointing authorities shall create a public application process, including a written application, an interview, and thorough vetting. To the extent possible, the appointing authorities shall appoint members to the commission who have a verified familial connection to the American Freedmen class. The commission shall elect a chair and vice chair from among its members.

SECTION 3. (a) The commission shall develop:

(i) proposals for remedial resolutions, including proposals for the form and amount of reparative remedies; and

(ii) a summary of data from the truth and reconciliation process. The commission shall consider a variety of methods, including, but not limited to, lump sum payments, yearly payments, victims' assistance funds, homeowners' assistance, tuition assistance, tuition refunds, mortgage refunds, and tax credits.

(b) The commission shall develop criteria to determine the eligibility of beneficiaries of state reparative measures and programs and a method for application to such programs.

(c) The commission shall make recommendations for the implementation of reparative measures, including recommendations regarding:

(i) the timeline for the implementation of such programs, with attention to how they would function for present and future generations;

(ii) draft legislation for the implementation of such programs; and

(iii) resources and materials for educating the public on remedial justice and reparative programs.

SECTION 4. Within 2 years, the commission shall submit a report of its findings and recommendations, together with drafts of legislation necessary to carry out such recommendations, to the clerks of the house of representatives and the senate, the joint committee on racial equity, civil rights, and inclusion, and the house and senate committees on ways and means. Within 2 years, the commission shall notify the public of its findings.

SECTION 5.

(a) Quorum. A quorum for conducting business shall consist of 5 members.

(b) Compensation. Non-legislative members of the commission shall receive reasonable per diem compensation for attendance at up to 10 meetings, subject to appropriation. Members shall also be reimbursed for customary expenses incurred during the execution of their duties.

(c) Vacancies. Vacancies shall not impede the commission's work and shall be filled by the original appointing authority for the remainder of the term.

SECTION 6. The commission shall serve as a continuing resource for the commonwealth by providing consultation to the permanent commission on the status of African Americans, established in section 72 of chapter 3 of the General Laws, and reviewing and advising on policies impacting the American Freedmen class to ensure equity and justice.

SECTION 7. This act shall take effect upon its passage.